

Court No. - 39

Case :- WRIT - C No. - 36856 of 2022

Petitioner :- Rajmani

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ruhi Yadav, Vaibhav Kumar

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Heard learned counsel for the parties and perused the record.

The petitioner herein seeks to challenge the demand notice dated 20.7.2022 on various factual issues raised before us.

The remedy before the petitioner is to approach the Executive Engineer concerned by invoking the provisions of Clause 6.8(b) (i) of the U.P. Electricity Supply Code, 2005.

In case the petitioner files reply to the demand notice within a period of two weeks along with the copy of this order, the competent assessing officer shall be under obligation to deal with all points of objection raised by the petitioner after giving due notice and opportunity of hearing to the petitioner, in accordance with the aforesaid provision, by passing a reasoned and speaking order, preferably, within a period of four weeks from the date of receipt of the reply.

For a period of two months or till a decision is taken by the assessing officer, in accordance with the provisions of Clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005, whichever is earlier, no coercive measure shall be taken against the petitioner pursuant to the demand notice dated 20.7.2022 issued by respondent no. 2.

However, in case of default on the part of the petitioner to approach the competent authority, it would be open for the respondent department to proceed in accordance with law.

The writ petition is, accordingly, **disposed of**.

Order Date :- 8.12.2022

Brijesh